Firma C - Master Services Agreement

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MASTER SERVICES AGREEMENT

THIS MASTER SERVICES AGREEMENT (this “Agreement”), dated as of [DATE REMOVED] (the “Effective Date”), is by and between Service Provider and Firma C (“Client”). [REGISTRATION AND ADDRESSES REMOVED.]

1. Services and Deliverables; Acceptance.

a) Statement(s) of Work. The services to be performed by Service Provider (the “Services") and any deliverables to be provided by Service Provider are those set forth in the attached and incorporated Statement(s) of Work (including without limitation, all materials described as “deliverables” under a Staternent of Work and any other information, software Programs (in source code and abject code format), logic diagrams, flow charts, databases, procedural diagrams, maps, documentation and other materials created, developed, reduced to practice or otherwise, or produced hereunder or under any Statement of Work (whether as individual items and/or a combination of components and whether or not the applicable Services are completed), and all rights of patent, copyright, trademark, trade secret and other proprietary tights therein and thereto prepared by or on behalf of Service Provider in the course of performing any Services, the "Deliverables"), From time to time during the term of this Agreement, the parties may enter into additional Statement(s) of Work which, once executed by both parties, shall be incorporated into and form a part of this Agreement. Service Provider shall negotiate in good faith regarding any new Statement of Work that is requested by Client from time to time.

b) Policies, Procedures and Standards. Without limiting any of the provisions of Section 23 below, Service Provider shall ensure the security of all Client Confidential Information while using Clicnt’s systems, networks and applications, and when communicating with Client via email and/or over the Internet in the course of performing Services and shall notify Client of any situation that will or is reasonably likely to put Client systems, networks or applications at risk. ¢) Changes in Scope. Client may, upon written notice to Service Provider, request additions, alterations, or other changes to the scope of any or all Services or Deliverables to be provided under a particular Statement of Work, including without limitation, the addition of new services to supplement such Services (such request, a “Change Request"). Within ten (10) business days of Service Provider’s receipt of a Change Request from Client, Service Provider shall provide Client with a written response (a “Change Order”) detailing the tasks to be performed to accomplish the proposed changes in scope and/or services set forth in such Change Request, as well as any changes in the fees that may arise therefram. Service Provider shall use reasonable efforts to accommodate each Change Request, at rates no greater than the applicable rates, if any, set forth in the Statement of Work to which such Change Request applies; notwithstanding anything herein to the contrary, in the event a Change Request refates to a reduction in Services or Deliverables, the partics shall negotiate in good faith an appropriate reduction in any stated or maximum fee(s) provided in the applicable Statement of Work. Client, in its sole discretion, reserves the right to accept, modify, or reject any or all Change Orders received from Service Provider. No Change Order shall bind either party unless and until both Client and Service Provider have accepted the terms and conditions of such Change Order in writing, in which event the terms and conditions of such Change Order shall be deemed an amendment to the applicable Statement of Work. Service Provider may not increase any fixed or other stated fees under any Statement of Work except through a Change Order executed by both parties.

d) Acceptance. Clicnt shall have fifteen (15) business days from its receipt of any Deliverable under any Statement of Work to review and evaluate such Deliverable to determine whether the Deliverable is satisfactory to Client and, to the extent requirements specific to the particular Deliverable are set forth in such Statement of Work or otherwise provided by Client to Service Provider, whether the Deliverables meet such requirements. The Deliverables shall be deemed accepted by Client upon Client's written notification to Service Provider of such acceptance. If Client rejects a particular Deliverable, Client shall provide Service Provider with a list or

description of the inadequacies, defects, deficiencies or other problems that led to the rejection together with the notice of rejection and the parties will mutually agree in writing on an acceptable time frame to correct the proposed errors to the Deliverable.

2. Fees/Expenses, Client agrees to pay Service Provider for Services pursuant to the Statement(s) of Work at Service Provider’s hourly billing Fates or fee{s) stated in the Statement(s) of Work, plus materials stated on any bilt of materials that is part of the Statement(s) of Work. If any rates, fees or materials prices are not expressly stated, then Service Provider's general hourly billing rates in effect at the time plus list price for materials will apply. Client further agrees to reimburse Service Provider for reasonable trave] and living expenses incurred by Service Provider in connection with the performance of Services, if so approved in writing by the parties. For Statements of Work that are scheduled to complete more than thirty (30) days beyond their commencement. Service Provider will send invoices for all work done not less than monthly, . and in some cases, on completion of regular milestone accomplishments. Service Provider reserves the right to temporarily pause performance in any case where an undisputed invoice remains unpaid for longer than thirty (30) days past its due date.

3. Payment. Unless otherwise expressly stated in a Statement of Work, Service Provider’s invoices are due and payable by Client in full within thirty (30) of receipt, excluding, however, any portion of an invoice with respect to any Deliverables that have

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not been accepted by Client in accordance with this Agreement. Additionally, Service Provider will require credit approval and an initial payment to begin performance under all Statements of Work. Notwithstanding the foregoing or any other provision of this Agreement, in the event Client disputes, reasonably and in good faith, any charges or portion of charges specified in an Service Provider invoice (the “Disputed Charge"), Client may withhold payment of such portion that is the Disputed Charge provided that Client gives Service Provider written notice of, and the basis for, such Disputed Charge within fifteen days (15) after receiving Service Provider’s invoice (cr fifteen (15) days afler the conclusion of the applicable acceptance period, if longer) and Client pays timely all undisputed charges, The parties shall work together in good faith to resolve any such Disputed Charge. Ifthe parties mutually determine Client owes any Disputed Charge, Client shail pay Service Provider such amount, within five (5) days of such deteimination. If the parties are unable to resolve the Disputed Charge within thirty (30) days of Client’s notice of the same, then each party shall be entitled to pursue its available remedies.

4. Representations, Warranties and Covenants.

a) Non-Infringement and Indemnification, Service Provider represents, warrants and covenants that it will, and it will cause, its employees, consultants and subcontractors ("Service Provider Presonnel") to perform their responsibilities and provide Services and Deliverables in a manner that dees not infringe, misappropriate or violate any patent, trademark, copyright, trade secret right. putlicity, privacy or other intellectun! property or other rights of any thitd party.. Service Provider shalt defend, indemnify, and hold Client and its affiliates, subsidiarics. successors and assigns (and their officers, directors, employees, sublicensees, Clients and agents) harmless from and against aty and all claims, losses, liabilities, damages. settlements, expenses and costs (including without ‘imitation, attomeys’ fees and court costs) (the foregoing, collectively, “Claim(s}”)} which arise directly or indirectly out of or relate to: (i) any breach (or claim or threat thereof that, if true, would be a breach) of this Ageeement by Service Provider of the confidentiality, noa-competition and consumer and company data obligations set forth in Sections 9 and 23; ancVor (ii) any third party claim or threat thereof that the Services, Service Provider Proprictary Information and/or any other Deliverables {and/or the exercise of any rights granted herein with respect thereto) infringe, misappropriate or vivinte any patent, tralemark, copyright. trade secret right, publicity, privacy or other proprietary or other rights of any third party, Client shall notify Service Provider promptly of any Claim for which indemnification is sought; provided, however, that the failure to give such notice shail not relieve Service Provider of Service Provider’s obligations hereunder except to the extent that Service Provider was actually and materially prejudiced by such failure. Client may, at its option and expense, participate and appear on an equal footing with Service Provider in the defense of any Claim that is conducted by Service Provider as set forth herein. Service Provider may not settle any Claim without the prior written approval of Client, unless such Claim seeks solely monetary datnages which, for the avoidance of doubt, would be the borne solely by Service Provider, pursuant to the indemnity provided above. Irom the date of written notice from Client te Service Provider of any such Claim to the date of a resolution of such claim,

Client stall have the right to withhold from any payments clus Service Provider under this Agreement the amount of any defense coxts, plus additional reasonable amounts as security for Service Provider's obligations under this Section If any Service or Deliverables does not conform to the covenant set forth in this Section 4(@), Service Provider may, at its sole cost and expense, procure the right for Client to continue to use the results of the Service or Deliverable, or may ce-perform the Service or replace the Deliverable so that it is non-infringing and meets the original specifications. If the preceding remedies are not reasonably available, upon request hy Client. Service Provider will {i) refind the price paié fir under the Statement of Work and (ii) assist Client in engaging enother vendor 10 provide the particular Service er Pcliverable and forther assist Client in transitioning such matter over to the replacement vendor. Service Provider will not be liable for any claim of infringement to the extent such claim is besed upon any: (i) data, information or materials furnished by Client 10 Service Provider; or (ii) modification of the Services or Deliverables by Client or by a party other than Service Provider at the request of Client. The foregoing is the sole and exclusive remedy of Client and states the entire liability of Service Provider with respect to infringements or misappropriation of any proprietary tights by the Services or Deliverables, Client represents, warrants and covenants that it owns or otherwise has sufficient rights to furnish Service Provider all data and other information and materials furnished by Client to Service Provider in connection with the Services or Deliverables.

b) Work Standards. Service Provider represents, warrants and covenants that (i) it and the Service Provider Personnel performing Services have the necessary knowledge, skills, experience, qualifications, and resources to perform the Services in accordance with the Statement of Work, (ii) the Services will be performed for and Deliverables provided to Client ina good. diligent, professional and workmanlike manner in accordanee with the industry standards, and (iii) the Services shall be performed by the completion date(s) set forth in the applicable Statement of Work, as mutually adjusted from time to time. ¢) Client Cooperation, Client agrees to reasonably and diligently cooperate with Service Provider's performance of Services. Clicnt further agrees to take any and al! actions reasonably necessary to enable Service Provider to perform the Services contemplated herein in an effective and efficieat manner.

d) On-Site Security and Safety. Service Provider represents, warrants and covenants that it and the Service Provider Personnel performing the Services, while present at the facilities of Ciient, will comply with the security and safety policies of Client that may be provided in writing to Service Provider from time to time. ¢) Warranties by Client. Client represents, warrants and covenants to Service Provider that; (1) Client has the legal right and authority during the term of this Agreement, to enter into this Agreement as contemplated herein; (2) Client is duly

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Organized and validly existing and has the legal power and authority to enter into this Agreement and to perform its Gbligations hereunder; (3) the person signing this Agreement on behalf of Client is duly authorized to do so, and upon its execution by such person, this Agreement is the valid and legalty binding obligation of Client; and (4) Client's services, products, materials, data and information used by Client in connection with this Agreement as well as Client's use of the Services does not as of the Effective Date, and will not during the term of this Agreement operate in any manner that would violate any applicable law or regulation.

f) Warranties by Service Provider, Service Provider represents, warrants and covenants to Client that: (1) Service Provider owns ar has the Icgal right and authority. and will continue to own or maintain the legal right and authority during the term of this Agreement, to provide the Setvices and grant the rights and assignments as contemplated by this Agreement; (2) Service Provider is duly organized and validly existing and has the legal power and authority to enter into this Agreement and to perform its obligations hereunder; (3) Service Provider’s execution of and performance under this Agreement shall not breach any written agreement with any third party or any obligation owed by Service Provider to any third party to keep any information or materials in confidence or in trust; (4) the person signing this Agreement on behalf of Service Provider is duly authorized to do se, and upon its execution by such person, this Agreement is the valid and legally binding obligation of Service Provider; (5) Service Provider’s Services and Deliverables as supplied to Client in connection with this Agreement do not as of the Effective Date, and will not during the term of this Agreement, knowingly violate any applicable law, rule or regulation and any requirements and policies of any iOS and Android mobile, software, or application distribution networks; (6) the Services and Deliverables shall be free from material errors, bugs, or other defects and shall substantially conform to any specifications for such Services and/or Deliverables as

agreed upon by the parties or as set forth or referenced in any applicable Statement of Work; (7) excluding any Service Provider Proprietary Information, the Deliverables shall be the original work of Service Provider, and with respect to any Service Provider Proprietary Information, Service Provider has sufficient rights to license to Client any such Service Provider Proprietary Information included within the Deliverables; (8) the Services and Deliverables shall be free from eny viruses, worms, Trojan horses or other harmful or malicious code or components, and free from any “self-help” code or other disabling code (provided, however, that with respect to any Third Party Technology comprising any Deliverables, the foregoing representation regarding malicious code in this subsection (8) shall only be to the knowledge of Service Provider); and (9) neither the Deliverables nor any element thereof shall be subject to any restrictions or to any mortgages, liens, pledges, security interests, encumbrances or encroachments,

5. Limitation of Liability. EXCEPT WITH RESPECT TO ANY MATTERS COVERED UNDER SECTIONS 9 IN NO EVENT WILL EITHER PARTY, OR ITS SUPPLIERS, BE LIABLE TO THE OTHER, WHETER IN CONTRACT OR IN TORT OR UNDER ANY OTHER LEGAL THEORY (INCLUDING, WITHOUT LIMITATION, STRICT LIABILITY AND NEGLIGENCE), FOR LOST PROFITS OR REVENUES, LOSS OF USE OR LOSS OF DATA, OR FOR ANY INDIRECT, SPECIAL, EXEMPLARY, PUNITIVE, MULTIPLE, INCIDENTAL, CONSEQUENTIAL OR SIMILAR DAMAGES, ARISING OUT OF OR IN CONNECTION WITH THE PERFORMANCE OR NON-PERFORMANCE OF A STATEMENT OF WORK, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IN NO EVENT WILL EITHER PARTY'S LIABILITY UNDER ANY CLAIM MADE BY THE OTHER PARTY EXCEED AN AMOUNT EQUAL TO THE TOTAL AMOUNT OF FEES ACTUALLY PAID BY CLIENT TO Service Provider UNDER THE STATEMENT OF WORK. Notwithstanding the above, however, in no event shall a party's liability be limited in amount of damages arising from (a) either party's gross negligence or willful misconduct, (b) either party’s breach of its confidentiality obligations under this Agreement, (c) Service Provider’s obligations under Section 4(a) of this Agreement with respect to indemnification for infringement, and (d) any personal injury or property damage. No action regarding the Services or Deliverables, regardless of form, may be brought morc than one (1) year after the conclusion of Services and delivery of any Deliverables under the Statement of Work. This limitation on actions docs not apply to confidentiality obligations, any indemnification for infringement provided under Section 4(a) of this Agreement, or any matters provided under Section 7 of this Agreement.

6. Place of Performance, The Services io be performed pursuant to a Statement of Work may be rendered at Client's, Service Provider’s, or subcontractor's facilities or at other suitable locations mutually agreed by Service Provider and Client.

7, Intellectual Property Rights,

a) Ownership of Deliverables. The parties agree that all Deliverables (other than any Background Code or Third Party Technology, as defined below) shall be deemed “works-made-for-hire” (as defined by the U.S. Copyright Act) and become the sole property of Client upon full payment for the Deliverable or the respective works-made-for-hire.its inception, conception, creation, fixture, development or reduction to practice. To the extent that any Deliverables are not deemed “work made for hire” by operation of law. , and by condition that these Deliverables or the respective works-made-for-hire are fully paid, Service Provider hereby irrevocably assigns, transfers, and conveys to Client the sole and exclusive right, title and interest 10 such Deliverables and all copies thereof, including without limitation, all rights of Patent, copyright, trademark, trade seeret, and other proprietary rights in such materials and all fights to causes of action and remedies related to any of the foregoing, effective immediately upon the inception, conception, creation, fixture, development, or reduction to practice thereof. without further consideration, As used herein, the terms (i) “Background Code” shall mean any proprietary Service Provider data, subroutines, libraries, or other code existing prior to the Effective Date as used in the development of the Deliverables, and (ii} “Third Party Technology” shall mean any

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software, materials or other technology which is owned or controlled by a third party. Service Provider may freely use its custom sofiware, ideas, concepts. know-how, and techniques that it develops during the course of providing Services and Deliverables under this Agreement or a Statement of Work, subject to the parties' confidentiality obligations set forth in this Agreement and provided further that such custom software, ideas, concepts, know-how, or techniques do not violate any pateut, trademark, copyright, trade secret or other intellectual property right of Client nor have any application to products or services included within any Services or Deliverables.

b) Assignment Obligations. Service Provider shall, and shall require afl Service Provider Personne! to, give Client and its designees all reasonable assistance and execute all documents necessary to assist and/or enable Clicnt to perfect, preserve, register and/or record its rights in any Deliverables. Without limiting the foregoing, prior to any Service Provider Personnel providing any Services hereunder, Service Provider shall require each such Service Provider Personnel to (i) execute an assignment of invention agreement with Service Provider nnd (ii) execute an agreement wherchy such personnel agrees 10 be hound by confidentiality and non-disclosure obligations no less restrictive than those set forth in this Agrecment. Service Provider shall, immediately upon Client's request or upon the termination, cancellation or expiration of any Stutement of Work or this Agreeinent, turn over to Client all Deliverables prepared or developed pursuant to such Statement of Work or this Agreement (as applicable), whether completed or in progress, and any Client Confidential Information {as defined below), documents or other materials held by or on behalf of Service Provider, together with all copies thereof.

c) Service Provider Proprietary Information, To the extent that the provision of the. Services, or the use of exploitation of any Deliverables, requires the nse or incorporation of any Background Code or Third Party Technology (such information aud materials, collectively, "Service Provider Proprietary Information"), Service Provider shall: (a) notify Client in advance of any putential use or incorporation thereof; (b) obtain the prior written authorization of Client for such use or incorporation, (x) at Client's request, provide Client with copies af any such Service Provider Proprietary Information; and (d) Jist any Service Provider Proprictary Information to be used in the applicable Statement of Work. All guch Service Provider Proprietary Information shall be marked by Service Provider as "confidential" or "proprictary." or, if disclosed orally or in other intangible form, shall be summerized hy Service Provider in writing within ten (10) days after such disclosure. If Service Provider fails to obtain such anthorizatian or give such notice, Service Provider agrees that it shall make no claim against Client with respect to any such Service Provider Proprietary Information. Except to the extent otherwise expressly st forth in an Stutement of Work or otherwise agreed to by the parties in writing, in the event that any Service Provider Proprietary Information is incorporated into or otherwise included in, or is necessary of desirable for the use or exploitation of, any Deliverable, Service Provider hereby grants to Client an irrevocable, perpetual, fully paid-up. non-exclusive, royalty-free, transferable, sublicensable Ghrough multiple levels of sublicensees), worldwide right and license to reproduce, distribute. display end perform whether publicly or otherwise), prepare derivative works of and otherwise modify, make, have made, sell, offer to sell. import and otherwise use and exploit (nnd have others exercise such rights on behalf of Client) all or any portion of such Service Provider Proprictary Information in connection with developing, enhancing, marketing, distributing, providing, maintaining, supporting or otherwise usiag or exploiting Client products and services (including without limitation, the Deliverables), in any form or media (now known or later developed), without consideration and +vithout any obligation to account to Service Provider or any third party.

§. Cancellation Policy; Non-Employees, To the extent that a Statement of Work calls for the retention of an individually named Service Provider staff member for onsite consulting services with Ciient, and except as otherwise expressly provided in the Statement of Work, Client agrzes to provide Service Provider with seven (7) business days prior notice of its intention to delay, extend or release a scheduted Service Provider staffing assignmem. If Client provides less than seven (7) business days' notice for delaying, extending or releasing assianed consultants, Service Provider may invoice and Client will pay far up to [BILLABLE HOURS REMOVED] nf consulling services for cach consnttant delayed, extended or released. Service Provider shall not utilize the services of any consultant, subcontractor er other noa-employee in the performance of the Services hereunder without the prior written consent of Clicat, which consent shall not he unreasonably withheld or delayed.

9, Confidential Information.

a) Defined, “Confidential Information”. as used in this Agreement, means all information proprietary to a party or any of its Clients or supplicrs that due to its nature is known of in good faith should be known to be confidential, including without limitation, all confidential information of a party described below, Confidential Information of Client will be deemed to include, without limitation, all data to which Service Provider obtains access by performing the Services and any Deliverable containing such data, all Deliverables (excluding any Service Provider Proprietary Information), the look and feel of all Deliverables, all Consumer and Company Data (defined belaw), all information conceming the operations, affairs, products, marketing, systems, technology, Clients, prospects, end-users, and businesses, including without limitation, financial affairs, of Clieat and/or any affiliates, and their respective relations with their Clients, prospects, employees, agents, and service providers (including without limitation, Client or prospect lists, Client, consumer, employer, company or prospect data, transaction information, supplier data, know-how, third party software and/or products provided by Client to Service Provider for use by Service Provider and information regarding consumer markets), and any other proprictary and trade secret information of Client and/or any affiliates, whether in oral, graphic, written, electronic or machine-readable form. Confidential Information of Service Provider will be deemed to include, without limitation, all Service Provider Proprietary Information. The obligations of the party ("Receiving Party") which receives Confidential Information of the other party ("Disclosing Party") with respect to any particular portion of the Disclosing Party's Confidential

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Information shall not attach or shall terminate, as the case may be, when any of the following occurs (i) it was in the public domain or generally available to the public at the time of disclosure to the Receiving Party, (ii) it entered the public domain or became generally available to the public through no fault of the Receiving Party subsequent to the time of disclosure to the Receiving Party, or (iii) it was or is furnished to the Receiving Party by a third parting having the right to furnish it with no obligation of confidentiality to the Disclosing Party. For purposes of this Agreement, “Consumer and Company Data” shall mean: (i) any information from which an individual may be identified; (ii) any information concerning an individual that would be considered “nonpublic personal information” within the meaning of Title V of the Gramm-leach Bliley Act of 1999 (Public Law 106-162, 113 Stat. 1338) and its implementing regulations, as the same may be amended from time to time: and (iii) any information regarding Client's (and/or its affiliates’) clients, Clients or prospective clients or Clients received or accessed by Service Provider in connection with the performance of ifs obligations under the Agreement, including without limitation: (i) an individual’s name, address, ¢- mail address, IP address, telephone number, photograph and/or social security number; (ii) the fact that an individual has a relationship with Client and/or its parent, affiliated or subsidiary companies; (iii) an individual's account information; (iv) any information conceiming any company, employer or other individual or entity accessing Client’s products or services (including without limitation, any hiring trends, job openings or other matters); and (v) any other information of or relating to an individual or company that is protected from disclosure by applicable Privacy Laws and/or Client's privacy policies. For purposes of this Agreement, “Privacy Laws" shall mean any national, federal, state or local {aws, rules or regulations of any jurisdiction relating to the nonpublic personal information.

b) Obligations. The Recciving Party agrees not to disclose any Confidential Information of the Disclosing Party in violation of this Agreement and to use Confidential Information of the Disclosing Party solely for the purposes of this Agreement, including without limitation, use of any Service Provider Proprietary Information as provided under Section 7(c) above. Excluding any Service Provider Proprietary Information to which Client has the right to use as provided under Section 7(¢) above, upon demand by the Disclosing Party, the Receiving Party shail return to the Disclosing Party all copies of the Disctosing Party's Confidential Information in the Receiving Party's possession or contro! and destroy all derivatives and other vestiges of the Disclosing Party's Confidential Information; provided that the Receiving Party may retain one archival copy solely for the purpose of administering its obligations under this Agreement. ¢) Need te Know. The Receiving Party may disclose Confidential Information of the Disclosing Party to its employees or coworkers who have a reasonable need to know such Confidential Information for purposes of this Agreement. Notwithstanding anything herein to the contrary, Service Provider, may not disclose any Confidential Information of Client 10 any parent company, subsidiary, affiliate any other third party without the prior written consent of Client (such consent not to be unreasonably withheld or delayed), Disclosure of Confidential Information required by court or government order shall not constitute a violation of this provision provided the Disclosing Party has been given notice, if

legally permitted, of such order by the Receiving Party.

a) Systems. Ifa party is given access, whether on-site or through remote facilities, to any computer or electronic data storage system of the other, such access and use shall be limited solely to performance within the scope of this Agreement and the party provided access shal! not knowingly access or attempt to access any computer system, electronic file, software or other electronic services other than those specifically required to fulfill its obligations under this Agreement. All user identification numbers and passwords shalt be decmed to be Confidential Information.

e) Ownership. All Confidential Information of the Disclosing Party shall remain the exclusive property of the Disclosing Party, subject to the provisions of Section 7(c) above.

f} Injunction, Both parties agree that violation of any provision of this Section would cause the Disclosing Party irreparable injury for which it would have no adequate remedy at law, and that the Disclosing Party will be entitled 10 immediate injunctive relief prohibiting such violation, in addition to any other rights and remedies available to it.

10. DELIBERETLEY OMMITTED.

11. Non-soticitation and Contracting. For a period of twenty-four (24) months afler conclusion of the Services, neither party shall solicit or hire as an employee or independent contractor any employee of the other party without the prior written consent of such other party. Publications of open positions in media of gencral circulation will not constitute solicitation by either party,

12. Notices, All notices and other communications under this Agreement will be in writing and deemed delivered one (1) day after being sent by a nationally recognized overnight courier service or three (3) days after being sent certified U.S, mail, return receipt requested, postage prepaid. All notices and other communications under this Agreement will be given to the Party at the address indicated in this Agreement.

13. Governing Law, This Agreement will be governed by, and construed and enforced in accordance with, the laws of the State of New York. applicable to contracts entered into and performed entirely within New York, and excludi ng conflicts of law principles.

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14. Term and Termination.

a) Term; Termination. In the event that Service Provider materially defaults in the performance of any of its duties or obligations herein or under any Statement of Work hercunder, which default shall not be substantially cured within fourteen (14) days after written notice is given to Service Provider specifying the default, then, Clicnt may, by giving written notice thereof to Service Provider, terminate this Agreement with respect to the Statement of Work under with such material defanit arose, together with and/or any licenses affected by or relating to such default as of a date specified in such notice of termination. In the event that Client materially or repeatedly defaults in the performance of any of its duties or obligations hereunder, which default shal! not be substantially cured within fourteen (14) days after written notice is given te Client by Service Provider specifying the default, then Service Provider may, by giving thirty (30) days written notice thereof to Client, terminate each Statement of Work and license relating thereto that is affected by or relates to such default as of adate specified in such notice of termination; provided, however, that if Client’s default arises from a failure to pay any charges as they come due and payable, as provided for in Section 3, which default shall not be substantially cured within fourteen (14) days after written notice is given 1 Client by Service Provider specilying the defautt and sccompanied ty the applicable invoice(s), Service Provider, without further notice or opportunity to cure, may, by giving written notice thercof to Client, terminate each Statement of Work and/or licenses celating thereto that is affected by or relates to such default as of a date specified in such notice of termination, and in the event that upon izrmination of such Statements of Work there are no othcr Statements of Work then outstanding, Service Provider may terminate this Agreement by giving written notice thereof te Clicnt as of a date xpecified in such notice of termination.

b) Termination for Convenience. Client may terminate this Agreement and any Statement of Work at any time pon providing thirly (30) days prior written notice to Service Provider. In the instance Clicnt exercise its right Client shall be required to pay al! fees to Service Provider for Services provided up to the date of termination

and Service Provider will be required to provide a pro-rata refund to Client for any amounts paid by Client for Services provided following termination.

c) Effect of Termination. Upon the effective date of any expiration or termination off {a) this Agreement, Service Provider shall immediately cease performing any Serviccs under this Agreement; and/or (b) any Statement of Work, Service Provider shall immediately coasc performing any Services under such Statement of work and return to Client or destroy any Client Confidential Information. Gliemt shall pay Service Provider. in accordance with the terms and conditions of this Agreement, those fees corresponding to the Services actually rendered by Service Provider and the Deliverables actually accepted by Client hereunder. and such amounts shall be in full satisfaction of any obligation or tishility of Client to Service Provider for any fees or other payments duz to Service Provider under this Agreement. Termination of a Statement of Work will not automatically terminzie this Agreement. Following termination of this Agreement for 4 material breach, Service Provider shall provide ressonable assistance to Client in connection with the transition of services to a new vendor. Anything herein to the contrary notwithstanding, the provisions of Scetinns 2, 3, 4,5, 7,9, 10, 11, 12, 13, 14, 15, 16, 17, 19, 20,

22, 23, and 24 of this Agreement will survive expiration or termination of this Agreement or any Statement of Work. “Termination of this Agreement by either pary shall not act as a waiver af any brench et this Agreement and shall not act ns a relcase of either party itom any Hability for breach of euch party’s obligations under this Agreement. Neither party shali be liable to the ether for damages of any kind solely as a result of terminating this Agreement (including without limitation, any Statement of Work) in accordance with its terms, and termination of this .igreement by a party shall be without prejudice to any other right or remedy of such party under this Agrcement nr applicable law.

15. Walver; Legal Foes, No forbearance. fhilure or delay in exercising any right, power or privilege is waiver thereof, nor

does any single or partial exercise preclude any other or future exercise, ot the exercise of any other right, power or privilege. No

waiver of any provision shall he effective uniess made in a writing signed by both Service Provider and Client.

If any legal action, including without limitation. an action far injunctive relief, is brought relating to this Agreement or the hseach hereof, the prevailing party in any final judgment, or the non-dismissing party in the event ofa voluntary dismissal by the party instituting the action, shail be eniitled to the full amount of all reasonable cxponses, including without \imitation, ail court costs, avbitratian fees and actual attomey fecs paid or incurred in good faith,

16. Severability. Failure of either party to enforce any of its rights hereunder will not be deemed to constitute a waiver of its future enforcement of such rights or any other rights. If any provisions of this Agreement are held to be invalid, illegal, or unenforceable under present or future laws, such provisions will be struck from the Agreement or amended, but only to the extent of their invalidity, illegality or unenforceability, The parties will remain legally bound by the remaining terms of this Agreement, and will strive to reform the Agreement in a manner as consistent as reasonably possible with the original intent of the parties as expressed herein.

17. Entire Agreement; Amendment. This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior proposals, agreements, negotiations, correspondence and other communications, whether written or oral, between Service Provider and Client. No modification of or amendment to this Agreement shall be effective unless in writing and signed by each of the parties.

18. Force Majeure. Neither party is liable for non-performance under this Agreement or any Statement of Work to the extent to which the non-rerformance is caused hy events or conditions heyand that party's control, and the party promptly notifies

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the other party and further makes all reasonable efforts to perform; provided, however, this paragraph shall not apply to either party's obligations with respect to payments of money pursuant to the terms of this Agreement or any Statement of Work, Notwithstanding the foregoing, in the event such cause continues 10 prevent or delay performance for more than sixty (60) days, the other party, in its discretion, may terminate ihe applicable Service, the applicable Statement of Work and/or this Agreement, effective immediately upon written notice to the non-performing party.

19. Execution in Counterparts. This Agreement and any Statement of Work may be executed in any number of counterparts. each of which shall be deemed an original, and all of which together shall constitute one and the same agreement. Delivery of an executed counterpart of this Agreement and any Statement of Work by facsimile or any other reliable means shall be effective for all purposes as delivery of a manually executed original counterpart. Either party may maintain a copy of this Agreement and any Statement of Work in electronic form. The parties further agree that a copy produced fram the delivered counterpart or electronic form by any reliable mcans (for example, photocopy, facsimile or printed image) shall in all respects be considered an original.

20. Independent Contractor. Service Provider's relationship with Client shall be that of an independent contractor and nothing in this Agreement should be construed to create a partnership, joint venture, agency or employer-employee relationship between the parties. Service Provider is not the agent of Client and is not authorized and shall not have any authority to make any representation, contract or commitment on behalf of Client, or otherwise bind Client in any respect whatsoever.

21. INTENTIONALLY OMMITTED

22. Consumer and Company Data, Without limitation of the terms and conditions set forth in Section 9, the following terms and conditions shall apply with respect to all Consumer and Company Data:

a) Generally. The partiss acknowledge that the Privacy Laws govern disclosures of nonpublic personal information about consumers, Service Provider acknowledges that pursuant to the Privacy Laws, Client is required to obtain certain undertakings from Service Provider with regard to the privacy, use and protection of Consumer and Company Data. Service Provider shall protect and keep strictly confidential all Consumer and Company Data, At any time, upon Client’s request, Service Provider shall return to Client atl Consumer and Company Data in its possession. Client shall be under no obligation to take any action that, within Client’s judgment, would constitute a violation of the Privacy Laws or its internal privacy policies.

b) Service Provider Covenants with respect to Consumer and Company Data. Notwithstanding any other provision of this Agreement, Service Provider covenants that, with respect to any Consumer and Company Data, Service Provider shall: (a) comply with all applicable laws, regulations and best practices regarding data security and privacy in performing the Services and its other obligations hereunder; (b) inform itself regarding, and comply with, Client’s privacy policies (as provided in writing from time to time by Client to Service Provider) and all applicable privacy laws, including without limitation, the Privacy Laws; (c) keep all Consumer and Company Data strictly confidential, and not disclose any Consumer and Company Data to third parties other than a regulatory authority having jurisdiction over the receiving party or use any Consumer and Company Data, except io the extent necessary to perform the Services and in accordance with Client’s privacy policies and all applicable privacy laws, including without limitation, the Privacy Laws; (d} not disclose any Consumer and Company Data to any other entity (including without limitation, Service Provider's third party service providers), other than a regulatory authority having jurisdiction over the receiving party, without the prior written consent of Client and an agreement in writing from such other entity to use or disclose such Consumer and Company Data only to the extent necessary to carry out Service Provider’s obligations under this Agreement and for no other purposes, (e) maintain (and require entities approved in accordance with foregoing subsection (d) to maintain) adequate administrative, technical, and physical safeguards to ensure the security and confidentiality of Consumer and Company Data, protect against any anticipated threats or hazards to the security or integrity of Consumer and Company Data, and protect against unauthorized access to or use of Consumer and Company Data; (f) not make any changes to its security measures that would increase the risk of an unauthorized access: (g) notify Client immediately in writing when Service Provider becomes aware of any material breach of its security safeguards or has reason to believe thal Consumer and Company Data may

have been subject to unauthorized disclosure, access. or use, which notification shall include the following information: (i) the nature of the unauthorized disclosure or use; {ii) the Consumer and Company Data disclosed or used; (iii) the identity of the person(s) or entity(ies) who received the unauthorized disclosure or made the unauthorized use; (iv) what corrective action Service Provider took or will take to prevent further unauthorized disclosures or uses; (v) what Service Provider did or will do to mitigate any deleterious effect of such unauthorized disclosure or use; and (vi) such other information as Client may reasonably request; and (h) take all reasonable and appropriate steps. at Service Provider’s expense and at the direction af Client, including without limitation, the provision of notice to affected individuals, to protect Consumer and Company Data in the event of a failure of Service Provider’s security safeguards or unauthorized access to Consumer and Company Data from or through Service Provider.

c) Safeguards. Service Provider represents and wasrants to Client that as of the Effective Date and throughout the term of this Agreement, it has and will continue to have adequate administrative, technical, and physical safeguards in place to ensure the security and confidentiality of Consumer and Company Data and other records and information of Client's

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Clients or employees, to protect against anticipated threats or hazards to the integrity of such information and records, and to protect against the unauthorized access or use of such information and records.

@) Unauthorized Use or Disclosure of Consumer and Company Data. Service Provider acknowledges and agrees that any unauthorized use or disclosure of Consumer and Company Data would cause immediate and irreparable harm to Client for which moncy damages would not constitute an adequate remedy and that in the event of any unauthorized use or tlisclosure of Consumer and Company Data, Client will be entitled to immediate injunctive telicf. Notwithstanding any other terms or conditions of this Agreement, in the event that Service Provider breaches any of its representations, warranties, or obligations under this Section 23, in additional to all other rights and remedics available to Client, Service Provider shall be required to bear all costs of notifying Client's Clients ot employees ef any unauthorized access to theit Consumer and Company Data.

23, Audit.

a) Service Provider will maintain complete and accurate books and records in connection with Services performed and Deliverables provided hereunder to substantiate all charges hereunder, and shail maintain records and information sufficient to show its compliance with the terms of this Seetion. Such records shall include Service Provider’s books, work, documents, papers, materials, payrolls, recards, accounts, and any and al] data directly relevant to this Agreement. No more frequent than annually, Service Provider shail permit Client and its authorized representatives to inspect, exaniine, make excerpts from, transcribe, and capy such records nt a mutually agreed upon time to audit and verify statements, invoices or bills submitted by Service Provider pursuant to this Agreement, and shall provide such assistance as muy be reasonably tequited in the course of such inspection, including without limitation, providing instruction on accessing Service Provider's books, records and other documents.

b) If any such audit reveals an overpayment hy Client, Service Provider will reimburse Client in full for the amount of such overpayment; and if the overpayment is [FINANCIAL THRESHOLD REMOVED] or more of the total amount actually awed to Service Provider under the applicable invoice, Service Provider shall scimburse Client for both the overpayment. Service Provider shall in no event dispose oi, destroy, alter or mutilate suid hooks, work, documents, papers. materials, payrolls, records, accounts and data in any manner whatsoever for three years after the final payment under this Agreement, or until all pending matters are closed, whichever is later.

¢) Before permitting Client or its authorized representatives to inspect, examine, make excerpts from, transcribe, and copy records mentioned in section 23 a) above, Service Provider will hide or remove all the information from these documents that Service Provider considers confidential that do not relate to this agreement of Services provided by Service Provider to Client. Technically, in order to effectively hide the confidential information, instead ef providing the originals Service Provider may provide copies of the documents with the confidential parts redacted, For the avoidance of doubt Service Provider will not be required to reveal or provide and documents, information and agreements with third parties that are deemed

confidential between Service Provider and those third parties and protected by confidentiality agreements, Service Provider shail not also be required to provide any documents, information and agreements relating to human resources information or details relating te Service Provider’s other clients.

24, Assignment. Service Provider acknowledges that Client hos entered into this Agreement on the basis of the particular abilities of Service Provider. Accordingly: (a) Client shall be cutitied to assign, sell, transfer, delegate or otherwise dispose of, whether voluntarily or involuntarily, by operation of law or othcrwise, this Agreement and any of its rights or obligations under this Agreement; and (b) Service Provider shall not and shal! aot have the right to assign, sell, transfor, delegate or otherwise dispose of, whether voluntarily or invokintarily, by operation of law or otherwise. this Agreement or any of its rights or obligations under this Agrecment without the prior written consent of Client which shall not be unreasonably withheld, except however, where Service Provider experiences a majority change in ownership of its equily and control or a sale of substantially all of its assets fin cither event, to @ third party that is not a Competitor), and provided the continuity of Service Provider's business interest is intact, such assignment shell be permitted hereunder. Except as provided hercin, any purported assignment, transfer or delegation by Service Provider shal} he aull aad void, Subject to the foregoing, this Agreeinent shal! be binding upon and shalt inure to the benefit of the parties and their respective successors and permitted assigns.

25. Promotions, Marketing and References. Service Provider shall not publicly announce, display, demonstrate, advertise, market, refer, perform and/or cite its involvement with the creation. modification or genesis of any of the Deliverables, Client or the type of or any other reference to the engagement hereunder fincluding without Limitation, this Agreement) without the prior written consent of Client.

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[SIGNATURE PAGE AND BLANK SCAN PAGE OMITTED.]